IN THE CIRCUIT COURT OF THE FIFTH JUDICIAL CIRCUIT
IN AND FOR MARION COUNTY, FLORIDA

PATRICIA STROBO and
JOE STROBO,

Plaintiffs, **CASE NO.: 42-2021-CA-002211**

vs.

WILLIAM RICHESON and
BLAC INVESTEMEN. INC.,

Defendants.
_____/

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ORDER SCHEDULING CASE MANAGEMENT CONFERENCE AND MEDIATION ORDER

Pursuant to Plaintiff's Notice for Trial filed on April 27, 2022, it is

ORDERED AND ADJUDGED as follows:

1. A Case Management Conference shall be held on **June 29, 2022 at 10:30 a.m.** before the undersigned Judge, via ZOOM. See ZOOM information below:

Meeting URL: https://zoom.us/j/98076364949?pwd=dTdMakIwL2d2TWEwMjVNWXpSOCs2UT09
Meeting ID: 980 7636 4949
Passcode: 788711

2. However, no later than **five (5) calendar days** prior to the scheduled hearing date, and after reviewing the attached 2022 Pre-Trial and Trial Schedule, the Parties may file a stipulation regarding the desired trial term **and submit a copy to the Court via email at rgrubb@circuit5.org**. Upon receipt of this stipulation, and subject to Court approval of the proposed trial date, a Pretrial and Trial Order will issue, and the hearing will be cancelled.

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IT IS FURTHER ORDERED that, in accordance with the Florida Rules of Civil Procedure 1.700-1.730 (2013), this case is hereby referred to mediation. The mediation shall take place prior to any scheduled Pretrial Conference.

1. The parties shall immediately confer to select a mediator and to agree on the date, time, and location of the mediation conference. Plaintiff shall have ten (10) days from the date of this order to file a "Notice of Mediation Conference" with the clerk, indicating the date/time of the mediation and the selected mediator.

2. It is preferred the parties agree upon the selection of a mediator. If the parties are unable to agree on a mediator, Plaintiff's counsel shall submit a proposed order (with appropriate blanks) and a mediator will be selected by the Court from a list of certified mediators maintained by the Court Administrator's Office.

3. THE GENERAL RULES GOVERNING MEDIATION ARE AS FOLLOWS:

a. The **APPEARANCE** of the parties and their trial counsel is **MANDATORY. APPEARANCE MAY BE IN PERSON, BY ZOOM, OR TELEPHONICALLY.** Parties who are corporate entities must designate a management representative with full authority to enter into a full and complete compromise and settlement, who will appear at mediation. An insured party must have a fully authorized representative (not the attorney) of the insurance company attend the mediation conference.

b. The Court will impose sanctions, including attorney fees and mediation costs, against any party who fails to attend or participate in good-faith settlement negotiations.

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The parties shall devote such time as is necessary to settle or until an impasse is declared by the mediator.

c. The parties shall adhere to any/all instructions of the designated mediator regarding presenting summations to the mediator prior to the scheduled mediation.

d. All communications, discussions, representations, and statements made at the conference shall be privileged settlement negotiations and nothing related to the conference shall be discoverable or admissible at trial.

e. The parties are advised that nothing in this Order shall be construed as a continuance of any matter in this case.

4. The mediator shall be compensated at the rate of no more than $325.00 per hour, or such other amount as agreed to by all parties for each hour of mediation, which cost shall be borne equally by the parties unless otherwise ordered.

5. *The parties are advised that any mediation completed more than one calendar year from the date of a scheduled pretrial conference shall no longer be considered as a valid mediation and the parties will be required to attend another mediation prior to this court assigning a trial date.*

DONE AND ORDERED on this 27 day of May 2022, in Ocala, Marion County, Florida.

GARY L. SANDERS
Circuit Court Judge

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy hereof has been furnished by electronic mail on this 27th day of May 2022, to all counsel of record.

R. Grubb, Judicial Assistant

If you are a person with a disability who needs any accommodation in order to participate in this proceeding, you are entitled, at no cost to you, to the provision of certain assistance. Please contact ADA Coordinator, Marion County Judicial Center, 110 N.W. 1st Avenue, Ocala, Florida 34475 or (352) 401-6710 at least at least 7 days before your scheduled court appearance, or immediately upon receiving this notification if the time before the scheduled appearance is less than 7 days; if you are hearing or voice impaired, call 711.

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JUDGE GARY L. SANDERS
AMENDED 2022 PRETRIAL AND TRIAL SCHEDULE

PRETRIAL	TRIAL TERM
NOVEMBER 23, 2021 @ 3:00 P.M.	JANUARY 3, 2022-JANUARY 14, 2022 (2-WEEK TRIAL TERM)
DECEMBER 16, 2021 @ 3:00 PM	FEBRUARY 7, 2022-FEBRUARY 11, 2022
JANUARY 20, 2022 @ 3:00 P.M.	MARCH 7, 2022-MARCH 25, 2022 (3 WEEK TRIAL TERM)
FEBRUARY 28, 2022 @ 3:00 P.M.	APRIL 4, 2022-APRIL 8, 2022
MARCH 24, 2022 @ 2:00 P.M.	MAY 2, 2022-MAY13, 2022 (2 WEEK TRIAL TERM)
APRIL 21, 2022 @ 2:00 P.M.	JUNE 6, 2022-JUNE 10, 2022
MAY 19, 2022 @ 2:00 P.M.	JULY 18, 2022-JULY 22, 2022
JUNE 23, 2022 @ 2:00 P.M.	AUGUST 1, 2022-AUGUST 12, 2022 (2 WEEK TRIAL TERM)
	NO TRIALS IN SEPTEMBER
AUGUST 18, 2022 @ 2:00 P.M.	OCTOBER 3, 2022-OCTOBER 7, 2022
SEPTEMBER 22, 2022 @ 2:00 P.M.	NOVEMBER 14, 2022-NOVEMBER 18, 2022
OCTOBER 20, 2022 @ 2:00 P.M.	DECEMBER 5, 2022-DECEMBER 9, 2022

***ALL TRIALS WILL BE SCHEDULED TO GO FOR THE FIRST TRIAL OF THE TRIAL TERM. IF THAT TRIAL TERM IS FULL, THEN YOUR CASE MAY BE BUMPED TO THE NEXT TRIAL TERM IN THE SAME MONTH. OUR POLICY FOR ORDER OF TRIALS IS BY AGE OF THE CASE. ALL DATES ARE SUBJECT TO CHANGE. ALL COUNSEL ARE TO KEEP THE COURT INFORMED IF YOUR CASE SHOULD SETTLE AT ANY TIME BY EMAILING rgrubb@circuit5.org

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JUDGE GARY L. SANDERS
2023 PRETRIAL AND TRIAL SCHEDULE

PRETRIAL	TRIAL TERM
NOVEMBER 29, 2022 @ 2:00 P.M.	JANUARY 9, 2023-JANUARY 13, 2023
DECEMBER 15, 2022 @ 2:00 PM	FEBRUARY 6, 2023-FEBRUARY 17, 2023 (2 WEEK TRIAL TERM)
JANUARY 26, 2023 @ 2:00 P.M.	MARCH 6, 2023-MARCH 10, 2023
FEBRUARY 23, 2023 @ 2:00 P.M.	APRIL 3, 2023-APRIL 14, 2023 (2 WEEK TRIAL TERM)
MARCH 23, 2023 @ 2:00 P.M.	MAY 8, 2023-MAY12, 2023
APRIL 27, 2023 @ 2:00 P.M.	JUNE 5, 2023-JUNE 16, 2023 (2 WEEK TRIAL TERM)
MAY 25, 2023 @ 2:00 P.M.	JULY 10, 2023-JULY 14, 2023
JUNE 29, 2023 @ 2:00 P.M.	AUGUST 14, 2023-AUGUST 25, 2023 (2 WEEK TRIAL TERM)
	NO JURY TRIALS IN SEPTEMBER
AUGUST 31, 2023 @ 2:00 P.M.	OCTOBER 2, 2023-OCTOBER 13, 2023 (2 WEEK TRIAL TERM)
SEPTEMBER 28, 2023 @ 2:00 P.M.	NOVEMBER 13, 2023-NOVEMBER 17, 2023
OCTOBER 26, 2023 @ 2:00 P.M.	DECEMBER 11, 2023-DECEMBER 15, 2023

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